

**MAHARASHTRA REAL ESTATE REGULATORY AUTHORITY,
MUMBAI.**

No. MahaRERA/VH/WARRANT/13/06/2023.

Date: 15th June 2023.

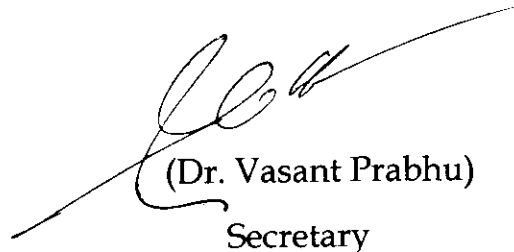
To,
The Collector, Mumbai Suburban,
Office of Collector, Administrative Building,
9th floor, Government Colony,
Opp. Chetana College, Bandra (East),
Mumbai-400 051

Sub: Execution of the warrant under Section 40(1) of RERA in Complaint No. CC006000000056795 filed by **VIBHUTI SANJAYKUMAR GUPTA & SANJAYKUMAR PAWAN GUPTA Vs. VIDHI REALTORS** in Project No. P51800007949.

Sir,

I am forwarding the recovery warrant under Section 40(1) of RERA & for its execution. You are requested to look into the matter personally and get the warrant executed at the earliest. On realization of the amount, you are requested to inform us.

Yours faithfully,



(Dr. Vasant Prabhu)
Secretary

MahaRERA, Mumbai.

Encl.: Warrant with
necessary papers.

Details of the attachable assets to be required u/s 17/2 of Maharashtra Realization of Land Revenue Rules 1967. When Revenue Recovery Certificate is under the provision of Revenue Recovery Act 1890.

No. MahaRERA/VH/WARRANT/13/06/2023.

Date: 15th June 2023.

1.	Name and address of the firm: -	VIBHUTI SANJAYKUMAR GUPTA SANJAYKUMAR PAWAN GUPTA 101 A, Swapnalok Apt, Pimpripada Road, Malad East, Film City Road, Mumbai City - 400097. Mobile No.- +91- 9322790995 Email ID: - spal13adv@gmail.com
2.	The sum to be recovered.	Interest for the delayed possession payable to the complainant till possession of the flat to the complainant along with occupancy certificate.
3.	The provision of law under which the R.R.C. is sent to recover the sum as in arrears of Land Revenue.	Recovery warrant u/s 40(1) of Real Estate (Regulation and Development) Act, 2016 and Rule 3 of Maharashtra Real Estate (Regulation and Development) (Recovery of Interest, Penalty, Compensation, Fine payable, Forms of Complaints and Appeals, etc.) Rules, 2017.
4.	No. & Date of order under	Complaint No.: CC006000000056795

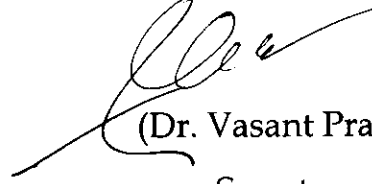
	which amount is ordered to be recovered.	Final Order dated: 17 th January 2019
5.	Full name and address of the defaulter with name of the building, room no., road name, village name/town, taluka, Dist. Pin Code No.	VIDHI REALTORS Pan No. AAFFV4222J 76, Laxmi Palace, Mathurdas Road, Kandivali West, Near Kapol Bank, Mumbai Suburban - 400067. Ketan Tokershi Shah - Authorized Signatory 701, Hemlok CHS Ltd, Kilachand Road, Near Shoperstop, Kandivali West, Mumbai Suburban - 400067. Vijay Kamal Properties Pvt Ltd - Partner 76, Laxmi Palace, Mathurdas Road, Kandivali West, Near Kapol Bank, Mumbai Suburban - 400067. Details of Contact Person: Jinam Shah - Legal Mobile No.- +91- 9833509427 Email ID: - <u>rg_rera@ravigroup.in</u>
6.	Full details of the property of defaulter against which the process may be executed.	The Project known as "Gaurav Discovery" situated at Plot Bearing No / CTS no / Survey Number/Final Plot no. 2841 pt at Borivali, Mumbai -

		400097. a) Housing project which is duly registered under the RERA Act bearing Registration No. P51800007949. b) Other apartments which are still not booked. Note: Land on which the project is being implemented, apartments that are already booked with other allottees should not be attached so that the project can be completed.
7.	Immovable property: a) Name of the building House/Building. b) Room No. c) Name of the village/town d) Road name/gally name e) Sr. No/ II No. of the property f) Area of the property in square meters g) CTS No. of the property area of the property.	c) If by attaching the property mentioned in 6 above still arrears remain, then the properties/offices or any other movable or immovable properties of the defaulters be attached and auctioned. In order to ascertain unsold inventory and other properties of defaulters, you may adopt the procedure similar to which laid down under Order 21 Rule 41 CPC - namely to examine the judgement debtor to disclose

		his property and produce its property card, failing which he can be sent to jail for 3 months.
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Mumbai

Date: **15th June 2023**


(Dr. Vasant Prabhu)
Secretary

MahaRERA, Mumbai

**MAHARASHTRA REAL ESTATE REGULATORY AUTHORITY,
MUMBAI.**

No. MahaRERA/VH/WARRANT/13/06/2023.

Date: 15th June 2023.

Recovery Warrant U/s. 40(1) of Real Estate

(Regulation and Development) Act, 2016 and Rule 3 of Maharashtra Real Estate (Regulation and Development) (Recovery of Interest, Penalty, Compensation, Fine payable, Forms of Complaints and Appeal, etc.) Rules, 2017.

Complaint No.: CC006000000056795

Project No: P51800007949

VIBHUTI SANJAYKUMAR GUPTA

SANJAYKUMAR PAWAN GUPTA

--- Complainants.

Versus

VIDHI REALTORS

--- Respondents.

To,
The Collector, Mumbai Suburban,
Office of Collector, Administrative Building,
9th floor, Government Colony,
Opp. Chetana College, Bandra (East),
Mumbai-400 051

Whereas the above-named complainant has filed the above complaint No. **CC006000000056795**, and the Authority/Adjudicating Officer passed the enclosed order wherein the complaints were settled in view of the consent

terms entered into between the parties.

And whereas the respondent has failed to comply with the order.

And whereas the amount ordered is recoverable from the respondents as an arrears of land revenue by virtue of Section 40(1) of Real Estate (Regulation and Development) Act, 2016 and Rule 3 of Maharashtra Real Estate (Regulation and Development) (Recovery of Interest, Penalty, Compensation, Fine payable, Forms of Complaints and Appeal, etc.) Rules, 2017.

You are hereby directed to recover the ordered amount from the respondent as the arrears of land revenue and pay it to the complainant and report the compliance.

The necessary information is:

1) Name of complainant with his address:

VIBHUTI SANJAYKUMAR GUPTA

SANJAYKUMAR PAWAN GUPTA

101 A, Swapnalok Apt, Pimpripada Road, Malad East, Film City Road,
Mumbai City - 400097.

Mobile No.- +91- 9322790995

Email ID: - spal13adv@gmail.com

2) Name of respondents/promoters/directors/partners

VIDHI REALTORS

Pan No. AAFFV4222J

76, Laxmi Palace, Mathurdas Road, Kandivali West, Near Kopol Bank,
Mumbai Suburban - 400067.

Ketan Tokershi Shah - Authorized Signatory

701, Hemlok CHS Ltd, Kilachand Road, Near Shoperstop, Kandivali West, Mumbai Suburban - 400067.

Vijay Kamal Properties Pvt Ltd - Partner

76, Laxmi Palace, Mathurdas Road, Kandivali West, Near Kapol Bank, Mumbai Suburban - 400067.

Details of Contact Person:

Jinam Shah - Legal

Mobile No.- +91- 9833509427

Email ID: - rg_rera@ravigroup.in

3. Name of the project & its location:

The Project known as “**Gaurav Discovery**” situated at Plot Bearing No / CTS no / Survey Number/Final Plot no. **2841 pt** at **Borivali, Mumbai - 400097.**

a) Housing project which is duly registered under the RERA Act bearing Registration No. **P51800007949.**

b) Other apartments which are still not booked.

Note: Land on which the project is being implemented, apartments that are already booked with other allottees should not be attached so that the project can be completed.

4) Particulars of immovable property and any other movable and immovable property:

a) If by attaching the property mentioned in 3 above still arrears remain,

then the properties/offices or any other movable or immovable properties of the defaulters be attached and auctioned. In order to ascertain unsold inventory and other properties of defaulters, you may adopt the procedure similar to which laid down under Order 21 Rule 41 CPC - namely to examine the judgement debtor to disclose his property and produce its property card, failing which he can be sent to jail for 3 months.

5) Amount to be refunded:

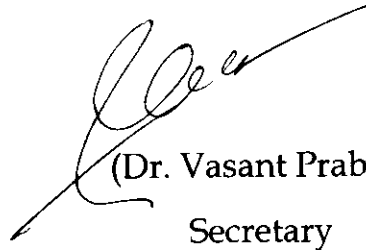
Interest for the delayed possession payable to the complainant till possession of the flat to the complainant along with occupancy certificate.

6) Enclosures:

- i) Final order dated. 17th January 2019.
- ii) Order of Non-compliance dated 24th June 2022.
- iii) Calculation submitted by the complainant.

Mumbai

Date: 15th June 2023


(Dr. Vasant Prabhu)
Secretary

MahaRERA, Mumbai

**BEFORE THE MAHARASHTRA REAL ESTATE REGULATORY
AUTHORITY, MUMBAI
NON-COMPLIANCE APPLICATION**

In

1. Complaint No. CC006000000055146

SANJAY NARAIN TEKWANI

...Complainant/s

Versus

VIDHI REALTORS

...Respondent/s

Along With

2. Complaint No. CC006000000055169

ANJALI SANJAY PANJWANI

SANJAY THAKUR PANJWANI

...Complainant/s

Versus

VIDHI REALTORS

...Respondent/s

Along With

3. Complaint No. CC006000000056781

MRS ANUJA GUPTA

MRS SEJAL A. PODAR

...Complainant/s

Versus

VIDHI REALTORS

...Respondent/s

Along With

4. Complaint No. CC006000000056795

MRS. VIBHUTI SANJAYKUMAR GUPTA

MR. SANJAYKUMAR PAWAN GUPTA

...Complainant/s

Versus

VIDHI REALTORS

...Respondent/s

Along With

5. Complaint No. CC006000000171636

ADITYA JAIN

AVANEESH JAIN

...Complainant/s

Versus

VIDHI REALTORS

...Respondent/s

MahaRERA Registration No. P51800007949

Coram: Dr. Vasant Prabhu, Secretary, MahaRERA

Adv. Godfrey Pimenta for Sr Nos. 1 & 2.

Adv. Shashipal Shankar for Sr Nos. 3 & 4.

Adv. Siraj Menon for Sr No. 5

None appeared for the Respondent.

Order

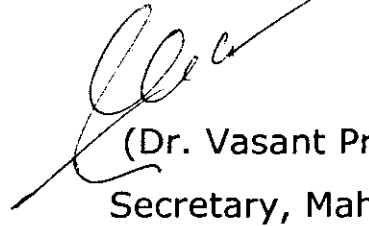
26th June 2022

(Through Video Conferencing)

1. The complainants above named has filed the present 5 applications for non-compliance of the MahaRERA Orders issued in the above-mentioned Complaint Nos. (hereinafter referred to as the said complaints), by the Respondent.
2. In the said complaints filed by the Complainants, the complainants had settled the matters amicably in view of the consent terms for sr. nos. 1 – 4, and the respondent was directed to refund the amount of Rs. 25,69,828/- along with interest at 9% till refund to the complainant along with a cost of Rs. 20,000/-.
3. On the said non-compliance applications, the hearing was held through video conferencing as per the MahaRERA Circular no. 27/2020 and MahaRERA Order No. 15/2020.
4. During the hearing, the complainants submitted that the respondent has failed to comply with the orders to date and there

is no communication with respect to the compliance of the said orders. The complainants, therefore, sought the issuance of warrants against the respondent under section 40(1) of the RERA.

5. The respondent did not appear even though the notice of hearing was duly served upon it.
6. After hearing the complainants, it is clear that, the respondent has failed to comply with the orders to date. Hence no further time can be granted to the respondent. Hence the complainant is entitled to seek issuance of warrants against the respondent as per the provisions of the RERA.
7. Therefore, the MahaRERA has no alternative but to proceed with action under section 40(1) of RERA against the Respondent. It is therefore, directed to issue recovery warrants under section 40(1) of RERA read along with Rule 3 of the Maharashtra Real Estate (Regulation & development) (Recovery of Interest, Penalty, Compensation, Fine Payable, Forms of Complaint & Appeals etc.) rules, 2017, in the said project of the Respondent.
8. In view of the above, the present applications stand disposed of.


(Dr. Vasant Prabhu)
Secretary, MahaRERA

**THE MAHARASHTRA REAL ESTATE REGULATORY AUTHORITY
MUMBAI.**

COMPLAINT NO: CC006000000056795.

Mrs. Vibhuti Sanjaykumar Gupta
Mr. Sanjaykumar Pawan Gupta

... Complainants.

Versus

M/s Vidhi Realtors
(Gaurav Discovery)

... Respondents.

MahaRERA Regn: P51800007949.

Coram: Shri B.D. Kapadnis,
Hon'ble Member & Adjudicating Officer.

Appearance:

Complainants: Adv. Shashipal Shankar.

Respondents: Adv. Krishna Agarwal.

FINAL ORDER

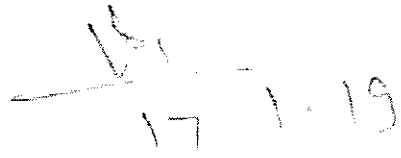
17th January 2019.

Both the parties have settled their dispute amicably and they have filed the consent terms marked Exh. 'A'. The complainants withdraw the complaint.

2. Hence, the complaint stands disposed off as withdrawn.

Mumbai.

Date: 17.01.2019.


(B. D. Kapadnis)
Member & Adjudicating Officer,
MahaRERA, Mumbai.